

25VECV07364 25VECV07364

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-30

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Tentative Ruling

Bedrosian v. Mercury Insurance Co.,

Case no. 25VECV07364

Hearing date June 30, 2026

Defendant

Mercury's Demurrer with Motion to Strike to the First Amended Complaint

Plaintiff

Bedrosian sues defendant Mercury Insurance Co. over defendant's handling of an underinsured-motorist ("UIM") claim. Defendant demurred to five of the six causes of action; the first amended complaint abandoned three of the original claims. The FAC now pleads causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing and violation of California Bus. & Prof. Code §17200, et seq. Defendant demurs to the first and third causes of action and separately moves to strike the prayer for equitable relief under the third cause of action. Plaintiff opposes both motions.

Defendant Mercury's Demurrer to First Amended
Complaint

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." *Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts," *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531,

550, but plaintiff must allege essential facts “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. *Doheny Park Terrace Homeowners Ass’n., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.

Defendant

demurs to the breach of contract claim, an essential element of which is breach of an express contractual provision. *Archdale v. American Specialty Lines Ins. Co.* (2007) 154 Cal.App.4th 449, 466–467; *Frances T. v. Village Green Owners Ass’n.* (1986) 42 Cal.3d 490, 512–513. The policy (FAC, exh. A) states what defendant owes plaintiff and under what circumstances payment is due, but no express terms as to when payment is owed. *Id.* The policy provides for an arbitration process prior to a claim being paid. *Id.*

Plaintiff

argues she performed all obligations under the policy and was owed payment. FAC, paras. 13, 16, 75-76. Plaintiff alleges defendant breached by failing to pay, delaying for 33 months while the claim was investigated and the matter arbitrated. *Id.* at paras. 77-79. Plaintiff argues the lack of a payment deadline does not abrogate defendant’s obligation to make timely payments under Civ. Code §1657. Plaintiff alleges the 33-month delay was not reasonable and constitutes breach. *Id.* at paras. 77-78.

The

FAC identifies no express contractual provision that defendant allegedly breached. This is an essential element for a breach of contract claim. *Archdale*, *supra*. The policy contains no payment due date nor timing obligation. See FAC exh. A. Plaintiff’s arguments that delayed payment constitutes breach are unavailing; these claims sound in breach of the implied covenant, not breach of contract, which requires plaintiff to identify breach of specific terms. The FAC alleges defendant’s performance by admitting that defendant ultimately paid the entire remaining policy limit, and plaintiff received the full \$250,000 UIM benefit. To sustain a breach of contract claim, plaintiff must identify specific contractual language or obligations that defendant allegedly breached. Plaintiff alleges defendant’s conduct frustrated the purpose of the contract, not that defendant breached the contract itself. SUSTAINED with 15 days leave to amend.

Defendant

demurs to plaintiff’s third claim for violations of Bus. & Prof. Code

§17200, et seq (“UCL”), which offers only equitable relief. See *Cel-Tech Commc'ns., Inc. v. Los Angeles Cellular Tel. Co.* (1999) 20 Cal.4th 163, 179. Where plaintiff has an alternative remedy at law, equitable relief is not available. *Prudential Home Mortgage Co. v. Superior Court* (1998) 66 Cal.App.4th 1236, 1250; *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1150–1151.

Defendant

argues the relief sought under the second cause of action includes compensatory damages, emotional-distress damages and attorney's fees (FAC, para. 89) and stands to make plaintiff whole, barring equitable relief. Defendant further argues the equitable relief sought is an impermissibly generalized, forward-facing injunction. See FAC, para. 97.

Plaintiff

argues defendant fails to address the unfair business practices prong under *Cel-Tech*, supra, at 180-181. Plaintiff argues an alleged systemic breach of insurance contracts can constitute an unfair business practice under the UCL. See *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 489. Plaintiff argues she alleged such systemic breaches. See FAC, paras. 68-69, 94. Plaintiff argues this remedy argument is inappropriate on demurrer, as a demurrer only tests the sufficiency of a pleading, not whether the relief sought will be awarded, citing *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

Plaintiff's

argument is unavailing. Dismissal of a UCL claim on demurrer because plaintiff could not allege “that she or the general public have, or will, suffer injuries which cannot be compensated by an award of damages” is permissible. *Brownfield v. Daniel Freeman Marina Hosp.* (1989) 208 Cal. App. 3d 405, 410, 414. The fullness of the remedies provided by the second cause of action bars equitable relief under the third cause of action.

The

relief sought in the FAC, a “forward-looking injunction [enjoining defendant] from continuing the pattern, practice, and corporate policy” (FAC, para. 97) is not an available remedy under the law. An injunction “may not issue unless the alleged misconduct is ongoing or likely to recur,” and “can never be used as a remedy designed to right completed wrongs.” *Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440,

464–465. Plaintiff alleges the full benefits available under the policy have been paid and received (FAC, para. 65) and fails to allege another relationship with defendant or imminent risk of harm. This is fatal to the cause of action.

The

court does not have authority to issue a sweeping, generalized injunction prohibiting defendant from engaging in future business practices where plaintiff has not alleged an ongoing relation with defendant nor immediate, particularized harm. The argument that the injunction sought is a public injunction under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945 is also unavailing. Relief with the primary purpose and effect of benefitting plaintiff or “a group of individuals similarly situated to the plaintiff” is not public injunctive relief. *Id.* at 955. SUSTAINED with 15 days leave to amend.

Defendant Mercury’s Motion to Strike

As

the court sustained the demurrers with leave to amend, the motion to strike is MOOT.